Gmail **Stephen Cooke <stephencooke.c@gmail.com>**

# Formal Demand for Accountability — Financial Exclusion and Resulting Harm | NSW 2278/25/9

**Stephen Cooke** <stephencooke.c@gmail.com> Tue, Nov 10, 2026 at 12:06 PM
To: EAInbox <EAInbox@afsa.gov.au>
Cc: Quoc DO <Quoc.Do@afsa.gov.au>

Dear Quoc,

I must ask, in the strongest possible terms: **By what authority does any institution consider itself entitled to obstruct my access to ordinary banking services, financial independence and the basic means of supporting myself?**

I returned to Australia seeking to rebuild my life, only to find myself unable to access my existing funds or establish a basic transaction account, despite presenting valid Australian identification.

The consequences were not theoretical. I was forced to sleep on the streets of Brisbane, unable to secure accommodation, and incurred travel-related losses of up to AUD $3,000.

**Who is accountable for this? Who authorised these restrictions, and who accepts responsibility for the resulting harm?**

I am not asking for special treatment. I am demanding an explanation of the legal authority, if any, underpinning these circumstances and immediate action to resolve any restrictions within AFSA's control.

My bankruptcy does not ordinarily prohibit me from opening a basic transaction account. Yet I have effectively been denied access to ordinary banking services across multiple major financial institutions.

**This situation is unacceptable. I expect accountability, a substantive written explanation and a clear pathway to resolution — not further administrative deflection.**

Please identify the responsible decision-makers, explain the applicable legal basis and advise what action will now be taken.

Kind regards,

Stephen Christopher Cooke

Bankruptcy Reference: NSW 2278/25/9

On Tue, Nov 10, 2026 at 11:58 AM Stephen Cooke <stephencooke.c@gmail.com> wrote:

> Dear Quoc,
>
> Further to my formal complaint, please find attached confirmation of my banking appointment at ANZ Queen Street Mall, Brisbane, on 3 November 2026 at 1:45 PM.
>
> I attended this appointment in an attempt to open a new transaction account. Despite presenting both a **valid Australian driver's licence and Australian passport**, I was ultimately unsuccessful in establishing an account.
>
> This provides further evidence of the difficulties I encountered accessing ordinary banking services during my return to Australia.
>
> Please include this documentation in your ongoing investigation.
>
> Kind regards,

Stephen Christopher Cooke

Bankruptcy Reference: NSW 2278/25/9

On Tue, Nov 10, 2026 at 11:49 AM Stephen Cooke <stephencooke.c@gmail.com> wrote:

> Dear Mr Do,
>
> I am lodging a formal complaint and requesting urgent resolution of my continued inability to access existing funds or establish ordinary banking facilities in Australia.
>
> Between **2 and 4 November 2026**, I was in Brisbane attempting to re-establish my financial independence, secure accommodation and obtain employment.
>
> **2 November 2026 — Commonwealth Bank, Brisbane City**
>
> I attended Commonwealth Bank at Level 3, 240 Queen Street, Brisbane City QLD 4000, where I spoke with teller Jetti and Branch Manager Glen.
>
> My existing account, which held AUD $8,504.47 at the commencement of bankruptcy, remained inaccessible. I was advised that trustee authorisation was required to address the restrictions.
>
> I also encountered difficulties establishing banking facilities with Westpac and NAB.
>
> **3 November 2026 — ANZ Banking Attempts**
>
> I attempted multiple times to establish a new ANZ Plus account and received messages advising that my identity could not be verified.
>
> I also received confirmation of a banking appointment scheduled for 1:45 PM at ANZ Queen Street Mall, Brisbane (BSB 014010).
>
> Despite my efforts, I was unable to establish a functioning transaction account.
>
> **AFSA Correspondence and Outstanding Review**
>
> On 2 November 2026, Senior Insolvency Services Officer Johnson Baquiran confirmed that my bankruptcy estate had been finalised and referred the matter for review.
>
> Acting Case Manager Ly Bui subsequently confirmed that my file had been assigned to you and advised that AFSA would review the information and contact the relevant banks if further enquiries were required.
>
> On 3 November 2026, you confirmed:
>
> "I'll start to review the matter and reach out to you shortly."
>
> I acknowledged your response and subsequently followed up on 7 November. I have yet to receive a substantive determination concerning the banking restrictions or the disposition of the funds.
>
> **Financial Hardship and Consequential Losses**
>
> My inability to access ordinary banking facilities contributed to severe financial hardship during my return to Australia.
>
> I was forced to sleep on the streets in Brisbane after being unable to secure emergency accommodation.
>
> Furthermore, my unsuccessful attempt to re-establish myself in Australia has resulted in claimed travel-related losses of up to **AUD $3,000**, which I attribute to the banking difficulties and resulting disruption.
>
> **Formal Requests**
>
> I respectfully request:
>
> 1. Written confirmation of the current status and findings of your review commenced on 3 November 2026.

2. Identification of any restrictions imposed, authorised or communicated by AFSA or the Official Trustee affecting my banking access.
3. The statutory authority and justification for any such restrictions.
4. A formal determination regarding the AUD $8,504.47 held by Commonwealth Bank at the commencement of bankruptcy, including whether those funds were claimed, realised or otherwise dealt with by the trustee.
5. Written clarification to the relevant financial institutions regarding any remaining trustee restrictions and my ability to establish an ordinary transaction account.
6. Details of any available review or compensation mechanisms concerning the financial hardship and claimed consequential losses of up to AUD $3,000.
7. An explanation of what further action is required to restore ordinary banking access.

I wish to emphasise that **access to ordinary banking facilities is essential to obtaining employment, securing accommodation and maintaining financial independence.**

Please register this correspondence as a formal complaint, provide a complaint reference number and advise when I can expect a substantive written determination.

I have retained supporting correspondence and documentary evidence, including ANZ identity-verification messages, appointment confirmation and previous AFSA communications.

Kind regards,

Stephen Christopher Cooke

Bankruptcy Administration: NSW 2278/25/9

Email: stephencooke.c@gmail.com

On Mon, Nov 2, 2026 at 7:14 PM Stephen Cooke <stephencooke.c@gmail.com> wrote:

> Dear Ly and Quoc,
>
> I am writing to urgently follow up on my previous correspondence regarding the frozen bank accounts and the outstanding AUD $8,504.47 held in my Commonwealth Bank account at the commencement of bankruptcy.
>
> I have now arrived in Brisbane and can be contacted directly on my Australian mobile number:
>
> **0433 669 781**
>
> Unfortunately, my circumstances have deteriorated further. I slept on the street last night and am currently experiencing homelessness.
>
> At present, Westpac, NAB and Commonwealth Bank are all refusing to allow me to use their banking facilities due to the ongoing restrictions associated with my bankruptcy.
>
> Consequently, I am effectively unable to access ordinary banking services, leaving me in an extremely vulnerable position while attempting to secure accommodation, employment and basic necessities.
>
> I understand that my matter has been assigned to Case Officer Quoc Do and that AFSA is reviewing the information on file. However, given the severity of my current circumstances, I urgently need an update.
>
> Could you please advise:
>
> 1. Whether Quoc Do has commenced reviewing my case.
> 2. Whether there has been any progress in determining the status of the $8,504.47.
> 3. Whether AFSA can provide written instructions to the relevant banks to address the restrictions.

4. What immediate steps can be taken to restore access to basic banking facilities.

I appreciate that these matters require investigation. However, I respectfully ask that my circumstances be taken into consideration and that this matter be escalated for urgent attention.

I am currently without stable accommodation, and the inability to access banking services is making an already difficult situation considerably worse.

I would appreciate a telephone call or written update as soon as possible.

Thank you for your consideration.

Kind regards,

Stephen Christopher Cooke

**Bankruptcy reference:** NSW 2278/25/9
**Email:** stephencooke.c@gmail.com
**Australian mobile:** 0433 669 781

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

On Sun, Nov 1, 2026 at 11:39 PM Stephen Cooke <stephencooke.c@gmail.com> wrote:

> Dear Ly,
>
> Thank you for your response and for confirming that my file has been assigned to Case Officer Quoc Do.
>
> I appreciate that funds held in bank accounts at the commencement of bankruptcy generally vest in the trustee. However, I am seeking clarification of the specific status and disposition of the funds in my circumstances.
>
> As previously advised, the balance in my Commonwealth Bank account at the commencement of bankruptcy was AUD $8,504.47.
>
> I understand from Johnson Baquiran's earlier correspondence that my bankruptcy estate has been finalised. Could you please clarify how this finalisation affects the funds held in my account?
>
> In particular, I urgently need confirmation of:
>
> 1. Whether the $8,504.47 was claimed, realised or otherwise dealt with by the trustee.
> 2. Whether AFSA currently retains any claim or interest in those funds.
> 3. Whether the funds can now be released to me.
> 4. Whether AFSA can issue written instructions directly to Commonwealth Bank and Westpac to remove the bankruptcy-related restrictions on my accounts.
> 5. If AFSA considers that the funds cannot be released, the specific reason and what steps are available to resolve the matter.
>
> I also wish to reiterate that I am currently experiencing serious financial hardship. I have no accessible funds and am struggling to secure basic accommodation and necessities.
>
> This is not simply an administrative inconvenience. The continued inability to access banking facilities is directly affecting my ability to support myself and rebuild my financial stability.
>
> Given that the estate has been confirmed as finalised, I would be extremely grateful if Case Officer Quoc Do could review this matter as a priority and provide a clear written response.
>
> Thank you for your assistance.
>
> Kind regards,
>
> Stephen Cooke Bankruptcy reference: NSW 2278/25/9 stephencooke.c@gmail.com

On Mon, 2 Nov 2026, 2:10 pm EAInbox, <EAInbox@afsa.gov.au> wrote:

OFFICIAL

Dear Sir,

I refer to your recent enquiry to Johnston and the AFSA Service Centre . Generally, funds held in a bank account at the date of bankruptcy vest in the trustee. We will review the information on file and contact the relevant banks if further enquiries are required.

Your file has now been assigned to Case Officer Quoc Do. he will be in touch if any additional information or documentation is required.

Kind regards,

**Ly Bui**

**Acting Case Manager** | Estate Administration

Trustee Operations, Personal Securities and Regulatory Programs

**Australian Financial Security Authority**
**T** 03 8631 4924 | **E** ly.bui@afsa.gov.au | **W** www.afsa.gov.au

OFFICIAL

From: stephencooke.c@gmail.com

**Sent**: Monday, November 2, 2026 12:38 PM

**To**: Johnson.Baquiran@afsa.gov.au

**Cc**: info@afsa.gov.au

**Subject**: Re: Bankrupt Estate of Stephen COOKE - NSW 2278/25/9

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Hi Johnson,

Thank you for forwarding my enquiry to the relevant team and confirming that my bankruptcy estate has

been finalised.

I appreciate your assistance. However, I urgently need clarification and action regarding the funds held in my Commonwealth Bank account when my bankruptcy commenced, totalling $8,504.47.

Both Commonwealth Bank and Westpac have advised me that they require communication or written instructions from AFSA before they can remove the bankruptcy-related restrictions and restore my banking access.

Could you please urgently confirm:

1. Whether AFSA has any remaining claim over the funds held in my Commonwealth Bank account at the commencement of bankruptcy.
2. Whether the finalisation of the estate means those funds can now be released to me.
3. Whether AFSA can issue written confirmation or formal instructions directly to Commonwealth Bank and Westpac confirming that the relevant restrictions can be lifted and my access restored.
4. Whether copies of any such correspondence can also be provided to me so I can present them to the banks if necessary.

I also need to emphasise the urgency of this situation. I have returned to Australia and am currently trying to rebuild my financial stability following bankruptcy. Without access to my banking facilities and these funds, I am facing the very real possibility of having nowhere to sleep tonight.

I am not simply seeking clarification for administrative purposes. Access to these funds is now critical to securing immediate accommodation and meeting basic living necessities.

Given that the estate has been finalised, I would sincerely appreciate this matter being escalated and addressed as a matter of urgency, ideally today.

Thank you again for your assistance. I look forward to hearing from you as soon as possible.

Kind regards,

Stephen Cooke Bankruptcy reference: NSW 2278/25/9 Email: stephencooke.c@gmail.com

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